

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUOE054221: LAURA ALICIA CRUZ vs ACSR, LLC

06/22/2026 in Department 44

Motion to Compel Arbitration, Dismiss Class Claims and Stay Representative Proceedings

Effective **January 5, 2026**, Judge Charmaine H. Buehner and all cases previously assigned to Department J4 at the Juvenile Justice Center in Oxnard transferred to Department 44, located at the Hall of Justice, 800 South Victoria Avenue, Ventura, California 93009.

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoqs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant ACSR, LLC’s Motion to Compel Arbitration, Dismiss Class Claims, and Stay Representative Proceedings (*opposed*)

Tentative Ruling:

Defendant ACSR, LLC’s Motion to Compel Arbitration, Dismiss Class Claims, and Stay Representative Proceedings is GRANTED. Plaintiff is ordered to arbitrate her individual claims, including her individual PAGA claim. Plaintiff’s class claims are dismissed. The representative PAGA action is stayed pending the outcome of arbitration of Plaintiff’s individual claims.

The Court sets a status conference on **June 18, 2027 at 8:30 a.m.**, and orders the parties to file a joint status report 10-court days in advance of the conference.

I. Judicial Notice of JAMS Rules

The Court takes judicial notice of the JAMS Employment Arbitration Rules & Procedures, effective June 1, 2021, because they are not reasonably subject to dispute and can be immediately and accurately determined by resorting to the JAMS website. (Evid. Code, § 452, subd. (h); *Vo, supra*, 108 Cal.App.5th at p. 640 [taking judicial notice on its own of rules in effect at time of plaintiff's signing of arbitration provision].) Further, they are relevant to the determination of unconscionability.

II. Relevant Background

This is a wage and hour class and PAGA action against defendant ACSR, LLC, which is alleged to have violated the Labor Code by failing to provide required meal and rest periods; failing to pay all wages; and failing to provide inaccurate wage statements. The alleged Labor Code violations form the basis for the derivative Unfair Competition Law (UCL) claim. The Complaint filed on November 12, 2025. The Operative FAC was filed on January 12, 2026, adding a PAGA claim.

This motion was filed on April 24, 2026. Plaintiff's opposition was filed on June 8, 2026. The reply was filed on June 12, 2026. No trial date has been set.

III. Discussion

A. Legal Framework: Motions to Compel Arbitration

"A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract." (Code Civ. Proc., § 1281.)

California has a strong public policy in favor of arbitration. (*Moncharsh v. Heily & Blasé* (1992) 3 Cal.4th 1, 9.) Likewise, Section 2 of the Federal Arbitration Act (FAA) provides in relevant part: "A written provision in...a contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction...shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C. § 2.) "In determining the rights of parties to enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.)

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and where a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate if it determines an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2; *Gorlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505 [noting that "when presented with a petition to compel arbitration, the trial court's first task is to determine whether the parties have in fact agreed to arbitrate the dispute"].) In deciding a petition to compel arbitration, trial courts must first decide whether an enforceable arbitration agreement exists between the parties, and then determine the second gateway issue of whether the claims are covered within the scope of the agreement. (*Omar v. Ralphs Grocer Co.* (2004) 118 Cal.App.4th 955, 961.)

The initial burden is on the party petitioning to compel arbitration to prove the existence of the agreement by a preponderance of that evidence. (*Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) Once petitioners allege that an arbitration agreement exists, the burden shifts to respondents to prove the falsity of the purported agreement, and no evidence or authentication is required to find the arbitration agreement exists. (*Condee v. Longwood Mgt. Corp.* (2001) 88 Cal.App.4th 215, 219.) A written provision in a contract to submit to arbitration for a dispute contemplated by the contract is valid, irrevocable and enforceable except on “such grounds as exist at law or in equity for the revocation of any contract.” (9 United States Code, § 2 [contracts subject to the Federal Arbitration Act (FAA)]; Code Civ. Proc., § 1281 [contracts governed by state arbitration law].) Thus, the existence of a valid agreement to arbitrate is determined by reference to state law principles regarding the formation, revocation and enforceability of contracts generally. (See *Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 385; see also *Kinney v. United Health Care Services, Inc.* (1999) 70 Cal.App.4th 1322, 1327-28.) Code of Civil Procedure section 1281.4 provides, in relevant part: “If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc., § 1281.4.) “The purpose of the statutory stay [under section 1281.4] is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved. [Citations.] [¶] In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective.” (*Federal Ins. Co. v. Superior Court* (1998) 60 Cal.App.4th 1370, 1374 1375.) Even “a single overlapping issue is sufficient to require imposition of a stay.” (*Heritage Provider Network, Inc. v. Superior Court* (2008) 158 Cal.App.4th 1146, 1153; see also *Coast Plaza Doctors Hospital v. Blue Cross of Calif.* (2000) 83 Cal.App.4th 677, 693 [staying all non arbitral claims other than for injunction]; *Federal Insurance Co.*, supra, 60 Cal.App.4th at p. 1374 [stay required where continuation of proceedings in the trial court “disrupts” arbitration proceedings and “can” render those proceedings ineffective].)

B. Application

1. The Existence of An Arbitration Agreement

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for rescission of the agreement.” (Code Civ. Proc., § 1281.2.)

“The party seeking to compel arbitration bears the burden of proving by a preponderance of the evidence an agreement to arbitrate exists.” (*Nixon v. AmeriHome Mortgage Co., LLC* (2021) 67 Cal.App.5th 934, 946; see also *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164 [“The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence.”].)

“The party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent's signature.” (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543–544; see also Cal. Rules of Court, rule 3.1330.) “Alternatively, the moving party can meet its burden by setting forth the agreement's provisions in the motion.” (*Gamboa, supra*, 72 Cal.App.5th at p. 165.) “For purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of document authentication.” (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218; see also *People v. Skiles* (2011) 51 Cal.4th 1178, 1187 [“The means of authenticating a writing are not limited to those specified in the Evidence Code.” (citing Evid. Code, § 1410)].) and *ibid.* [“For example, a writing can be authenticated by circumstantial evidence and by its contents.”].)

Here, Defendant has produced a copy of the arbitration agreement purporting to bear Plaintiff's electronic signature. (Mitchell Decl., ¶ 8, Exh. A.) Defendant has thus met its initial burden. (*Gamboa, supra*, 72 Cal.App.5th at p. 165.)

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (*Gamboa, supra*, 72 Cal.App.5th at p. 165.) “The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (*Ibid.*)

Plaintiff submits her own declaration, in both English and Spanish, along with the declaration of who declares under penalty of perjury that he is employed by Plaintiff's counsel's firm; that he is fluent in both English and Spanish; and that translated the documents, which is accurate to the best of his knowledge. (See generally Cruz Decls.; Moreno Decl., ¶¶ 1-3.) Generally, exhibits written in a foreign language must be accompanied by an English translation, “certified under oath by a qualified interpreter.” (Cal. Rules of Court, rule 3.1110, subd. (g).) A declaration in support of a motion has been considered an exhibit for purposes of this rule. (*Detrick v. Shimada* (2026) 120 Cal.App.5th 170, 180; see also *People v. Frontier Pacific Ins. Co.* (1999) 69 Cal.App.4th 1093, 1096, fn. 3 [commenting that a foreign language declaration “was not accompanied by an English translation certified by a qualified interpreter as required by California Rules of Court, rule 311(e) [predecessor to current rule].]) The Court accepts Plaintiff's declaration in the absence of Defendant's objection.

Plaintiff does not recall electronically signing the arbitration agreement. (Cruz Decl., ¶ 3.) This is sufficient to shift the burden back to Defendant.

“If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.)

Defendant submits the declaration of its Human Resources Senior Director, Eva Joy Mitchell, whose job duties include inputting employee information into the onboarding system and overseeing new hire orientations. (Mitchell Decl., ¶¶ 1, 3.) In her capacity, Mitchell has access to

Plaintiff's personnel file, which is kept in the ordinary course of business. (*Id.*, ¶¶ 3-4.) Mitchell describes the electronic boarding process, which requires that applicants receive an email at their personal email address, after which they are prompted to create a password known only to the applicant. She asserts that Plaintiff electronically signed the document on December 8, 2023, at 11:39 a.m. (*Id.*, ¶¶ 5-11 and Exhs. A-D.)

In her declaration, Plaintiff concedes that when she was hired, she did sign "numerous documents in English, both electronically and physically[.]" She further asserts that "Defendant" told her where to sign, date, and insert information. (*Id.*, ¶ 4.)

Considering the evidence before the Court, the Court finds that Defendant has met its burden of establishing the existence of an agreement to arbitrate and that Plaintiff has consented to arbitrate all claims within the scope of the agreement

2. Scope of the Agreement

"The scope of arbitration is a matter of agreement between the parties[.]" (*Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 763.) "The party opposing arbitration has the burden to show the arbitration provision cannot be interpreted to cover the claims in the complaint." (*Id.* at p. 764.) Plaintiff has the burden to show that the provision does not cover the claims alleged. (*Id.*)

In Section 3, titled "Covered Matters," the arbitration provision provides as follows:

This Agreement covers all Matters in a federal, state, or local court or agency under applicable federal, state, or local laws, arising out of Employee's employment, including claims and other Matters that Employee may have against the Company or against its officers, directors, members, supervisors, managers, owners, employees, alleged joint employers, or agents in their capacity as such, or that the Company may have against Employee. The claims covered by this Agreement include, but are not limited to, claims for breach of any contract or covenant (express or implied), tort claims, claims for wrongful termination (constructive or actual) in violation of public policy, claims for discrimination or harassment (including, but not limited to, harassment or discrimination based on race, sex, gender, religion, national origin, age, marital status, medical condition, psychological condition, mental condition, disability, or sexual orientation), claims for violation of any federal, state, or other governmental law, statute, regulation, or ordinance, including, but not limited to, all claims arising under Title VII of the Civil Rights Act, the Age Discrimination in Employment Act, the Americans With Disabilities Act, the California Fair Employment and Housing Act, the Consolidated Omnibus Budget Reconciliation Act of 1985, and Employee Retirement Income Security Act. The Parties specifically agree that all claims under the California Labor Code, including, but not limited to, claims for overtime, unpaid wages, timely payment of wages, maintaining records, wage statements, claims under the Private Attorneys General Act of 2004, and claims involving meal and rest breaks shall be subject to this Arbitration Agreement. ("Covered Matters").

(Mitchell Decl., Exh. A at p. 1.)

Plaintiff's claims arise out acts and omissions by Defendant that directly related to Plaintiff's employment with Defendant, and which are alleged to violate code sections and laws that are directly or indirectly reference in the agreement. Plaintiff does not argue otherwise. Accordingly, the Court finds that Plaintiff's claims are within the scope of the agreement.

3. Applicability of the FAA

"A written provision in any maritime transaction or a contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction, or the refusal to perform the whole or any part thereof, or an agreement in writing to submit to arbitration an existing controversy arising out of such a contract, transaction, or refusal, shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract or as otherwise provided in chapter 4." (9 U.S.C., § 2.) "[T]he word 'involving' is broad and is indeed the functional equivalent of 'affecting.'" (*Allied-Bruce Terminix Companies, Inc. v. Dobson* (1995) 513 U.S. 265, 273-274[.])

"The FAA contains no express pre-emptive provision, nor does it reflect a congressional intent to occupy the entire field of arbitration." (*Volt Information Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University* (1989) 489 U.S. 468, 477.) "[T]he FAA does not require parties to arbitrate when they have not agreed to do so[.]" (*Id.* at p. 478.) "[N]or does it prevent parties who do agree to arbitrate from excluding certain claims from the scope of their arbitration agreement[.]" (*Ibid.*) "It simply requires courts to enforce privately negotiated agreements to arbitrate, like other contracts, in accordance with their terms." (*Ibid.*) "In recognition of Congress' principal purpose of ensuring that private arbitration agreements are enforced according to their terms, we have held that the FAA pre-empt[s] state laws which require a judicial forum for the resolution of claims which the contracting parties agreed to resolve by arbitration." (*Id.* at p. 478 [internal quotation marks omitted].) "But it does not follow that the FAA prevents the enforcement of agreements to arbitrate under different rules than those set forth in the Act itself. Indeed, such a result would be quite inimical to the FAA's primary purpose of ensuring that private agreements to arbitrate are enforced according to their terms. Arbitration under the Act is a matter of consent, not coercion, and parties are generally free to structure their arbitration agreements as they see fit." (*Id.* at p. 479.)

"[C]ontracting parties may agree that the FAA will not govern their arbitration even if the contract involves interstate commerce." (*Mastick v. TD Ameritrade, Inc.* (2012) 209 Cal.App.4th 1258, 1263.) "And if the parties agree that California law govern[s] the contract, the CAA applies." (*Id.* at p. 1264 [citing *Volt*]; see also *Best Interiors, Inc. v. Millie & Severson, Inc.* (2008) 161 Cal.App.4th 1320, 1325-1326 [citing *Volt* and stating, "[E]ven if the FAA applies because the subcontract affects interstate commerce—a point we need not discuss—the parties may agree that California law governs their agreement to arbitrate."].)

Conversely, the parties may also agree that the FAA does govern. (*Barrera v. Apple American Group LLC* (2023) 95 Cal.App.5th 63, 76 ["The FAA applies to contracts that involve interstate commerce (9 U.S.C. §§ 1, 2), but since arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement."]; see also *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.) *Tuufuli v. West Coast Dental Administrative Services, LLC* reached the same conclusion, although review has been granted in that case. (*Tuufuli v. West Coast Dental*

Administrative Services, LLC (2026) 117 Cal.App.5th 1048, review granted Mar. 25, 2026, S295323.)

“A party seeking to enforce an arbitration agreement has the burden of showing FAA preemption.” (*Lane v. Francis Capital Management LLC* (2014) 224 Cal.App.4th 676, 687.) “For example, a petitioner seeking an order to compel arbitration must show that the subject matter of the agreement involves interstate commerce.” (*Id.* at pp. 687-688.)

Here, Defendant presents evidence that it operates a skilled nursing facility in Ventura County. But it receives payments from Medicare “and, on information and belief, from insurance companies and family members located in states such as Tennessee, North Dakota, Hawaii and others.” (Mitchell Decl., ¶ 2.) “Payments of Medicare or Medicaid funds are transactions involving commerce.” (*Willis v. Prime Healthcare Services, Inc.* (2014) 231 Cal.App.4th 615, 626; see also *Summit Health, Ltd. v. Pinhas* (1991) 500 U.S. 322, 327 [“The provision of ophthalmological services affects interstate commerce because both physicians and hospitals serve nonresident patients **and receive reimbursement through Medicare payments.**” (boldfacing added)].) Setting that aside, the agreement, in Section 7 titled “Governing Law,” provides that the FAA applies. (Mitchell Decl., Exh. A at p. 3.) Plaintiff makes no argument to the contrary. Hence, the Court finds that the FAA applies.

4. Defense to Arbitration: Unconscionability

“Once an agreement to arbitrate has been proved, the burden shifts to the party opposing arbitration to establish a defense to the enforcement of the agreement, including the burden of demonstrating that the exemption [from arbitration] applies.” (*Nixon v. AmeriHome Mortgage Co., LLC, supra*, 67 Cal.App.5th at p. 946 [internal quotation marks and citation omitted].)

“Unconscionability in a contract is one reason a court may decline enforcement.” (*Lange v. Monster Energy Co.* (2020) 46 Cal.App.5th 436, 445.) “If the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may so limit the application of any unconscionable clause as to avoid any unconscionable result.” (Civ. Code, § 1670.5, subd. (a); see also *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 505 [“[A]n unconscionability assessment focuses on circumstances known at the time the agreement was made.”].)

“The general principles of unconscionability are well established. A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree and the contract contains terms that are unreasonably favorable to the other party.” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.)

“Unconscionability consists of both procedural and substantive elements. The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 246.) “Both procedural unconscionability and substantive unconscionability must be shown, but they need not be present in the same degree and are evaluated on a sliding scale.” (*Id.* at p. 247 [quoting in part *Armendariz v. Foundation Health Psychare Services, Inc.* (2000) 24 Cal.4th at p. 83, 114

(internal quotation marks omitted)).) “In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Armendariz, supra*, at p. 114.)

“The party resisting arbitration bears the burden of proving unconscionability.” (*Pinnacle Museum Tower, supra*, at p. 247.)

a. Procedural Unconscionability

“Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion.” (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113.) “An adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power ‘on a take-it-or-leave-it basis.’” (*OTO, L.L.C. v. Kho, supra*, 8 Cal.5th at p. 126 [quoting *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1245].)

“Oppression occurs where a contract involves lack of negotiation and meaningful choice, surprise where the allegedly unconscionable provision is hidden within a prolix printed form.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 247.) “The circumstances relevant to establishing oppression include, but are not limited to (1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party's review of the proposed contract was aided by an attorney.” (*Grand Prospect Partners, L.P. v. Ross Dress for Less, Inc.* (2015) 232 Cal.App.4th 1332, 1348, *as modified on denial of reh'g* (Feb. 9, 2015).)

Plaintiff argues the agreement was presented on a take-it-or-leave-it basis, making the agreement a contract of adhesion. She states in her declaration that she was required to sign “numerous” documents in order to “begin” her employment; that “Defendant” told her “where to sign, date, and insert information;” that she “understood” that she had to sign the documents “in order to work for Defendant;” that she was “not given time to review the documents;” and that she was “not allowed to take the documents home or take time to speak with an attorney before signing them.” (Cruz Decl., ¶ 4.) Plaintiff omits to state her age; her level of education; her prior work experience and experience with arbitration; and, as stated above, that she does not speak, read, or understand English. Nor does she state that she requested, but was denied access to, documents in Spanish. She does assert that while she was working for Defendant, Defendant never discussed arbitration with her. (*Id.*, ¶ 5.)

Defendant presents general evidence of how documents are provided to applicants and signed electronically by them. (Mitchell Decl., ¶¶ 5-11 and Exhs. A-D.) But Defendant presents no evidence from any individual who was present with Plaintiff when she signed the documents. Neither Defendant nor Plaintiff offers clear evidence on where Plaintiff’s onboarding took place. The Court infers from the declarations that the process occurred at Defendant’s facility and involved multiple individuals. (Cruz Decl., ¶ 4 [stating that she was told where to sign, date, and provide information]; Mitchell Decl., ¶¶ 5-6 [indicating that the document “was provided to ACSR employees during their onboarding in December 2023” and that “ACSR conducted the onboarding process”].)

The agreement itself is a four-page, single-spaced, pre-printed document that discusses complex matters. (Mitchell Decl., Exh. A.) Although Plaintiff asserts that she was not given time to consider the document, she does not specify or even estimate how much time she was provided to sign all the documents. Defendant's Audit Report seems to indicate that the first document signed on December 8th was the arbitration agreement, and that after viewing it, Plaintiff viewed the next document 61 seconds later. (Mitchell Decl., Exh. C [highlighted entries and entry above them]). But it can be inferred that Plaintiff had the opportunity to ask questions about the documents she signed, as she concedes there was somebody there to tell her where to sign, date, and provide information in the forms. Moreover, she does not say she was *not* permitted to ask questions; rather, she only asserts that she could not take them home or speak with an attorney before signing them. (Cruz Decl., ¶ 4.) Additionally, the Audit Report suggests that all documents were signed over a period that began at approximately 11:39 a.m. and ended at 1:26 p.m., a period of approximately one hour, forty-five minutes. (Mitchell Decl. Exh. C [time stamps for first and last documents].)

While the agreement is lengthy and discusses complex matters, it is a standalone document that is well-organized; uses bold type and underlining to call attention to different sections; and expressly explains in Section 6 that they are waiving a trial by jury. (Mitchell Decl., Exh. A at p. 3.)

Considering all the evidence and reasonable inferences drawn therefrom, the Court finds that Plaintiff has established a low level of procedural unconscionability in that the arbitration agreement was presented on a take-it-or-leave-it basis. (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 494 [“[A]dhesion alone generally indicates only a low degree of procedural unconscionability[.]”].) Considering the above-referenced factors for determining oppression, the Court finds that Plaintiff has likewise established a low level of oppression.

b. Substantive Unconscionability

“A court should consider substantive unconscionability only after procedural unconscionability has been established. A ‘conclusion that a contract contains no element of procedural unconscionability is tantamount to saying that, no matter how one-sided the contract terms, a court will not disturb the contract because of its confidence that the contract was negotiated or chosen freely, that the party subject to a seemingly one-sided term is presumed to have obtained some advantage from conceding the term or that, if one party negotiated poorly, it is not the court's place to rectify these kinds of errors or asymmetries.’” (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 494 [quoting *Gentry v. Superior Court* (2007) 42 Cal.4th 443, 470].)

“Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC, supra*, 55 Cal.4th at p. 246.) “A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be so one-sided as to shock the conscience.” (*Ibid.* [internal quotation marks and citation omitted].)

Here, Plaintiff argues the agreement contains two substantively unconscionable provisions. First, Plaintiff argues that the following sentence is substantively unconscionable:

To the maximum extent permitted by law, the Parties agree that all PAGA claims shall be heard on an individual basis in arbitration and that any non-individual or representative PAGA claims shall be promptly dismissed.

(Mitchell Decl., Exh. A at p. 2 [Section 5].)

Class action waivers are generally enforceable under the FAA. (*AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 346; *Epic Systems Corp. v. Lewis* (2018) 584 U.S. 497, 502.) “[T]he same is not true of representative PAGA actions. As to those actions, ‘a predispute categorical waiver of the right to bring a PAGA action is unenforceable.’ ” (*Stoker v. Blue Origin, LLC* (2026) 120 Cal.App.5th 91, 111 [quoting *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1117].) In *Stoker*, the Court of Appeal held that an arbitration provision’s “purported waiver of the employee’s right to bring ‘representative’ actions, including representative PAGA claims,” was substantively unconscionable. (*Stoker, supra*, 120 Cal.App.5th at p. 112.)

In *Viking River Cruises, Inc., v. Moriana* (2022) 596 U.S. 639, the Supreme Court expressly held that the employer could compel an employee to arbitrate the employee’s individual claims. (*Id.* at p 662.) But it also held that an agreement that contained a waiver of non-individual claims would be contrary to the FAA and therefore invalid. (*Ibid.*) In that case, the court found that the agreement contained a severability clause, which allowed for the employee’s individual PAGA claims to be arbitrated. (*Ibid.*)

Here, the challenged language is expressly limited by the phrase “to the maximum extent permitted by law.” Further, the agreement, like the one in *Viking River Cruises*, also contains a severability clause. (Mitchell Decl., Exh. A at p. 4 [Section 14].) Accordingly, the Court reads the challenged phrase as not requiring the dismissal of the representative PAGA claim. Under *Adolph v. Uber Technologies, Inc.*, compelling arbitration of the individual PAGA claim does not, by itself, strip Plaintiff of standing to pursue non-individual PAGA claims in court. Accordingly, the Court finds that the provision is not substantively unconscionable.

Plaintiff’s second substantive unconscionability argument relates to the discovery provision in connection with the *Armendariz* factors. The Court finds that that provision is not substantively unconscionable; Plaintiff is afforded sufficient minimum discovery in satisfaction of *Armendariz*.

In sum, under the sliding scale approach and considering that Plaintiff established only a low level of procedural unconscionability and no substantive unconscionability, the Court finds that Plaintiff has failed to meet her burden of proving that the arbitration agreement is unconscionable.

IV. Disposition

For the reasons stated herein, the motion is granted. Plaintiff is ordered to arbitrate her individual claims, including her individual PAGA claim. The class claims are dismissed. The representative PAGA action is stayed pending the outcome of the arbitration of Plaintiff’s individual claims.

Counsel for Plaintiff is ordered to give notice of the Court's ruling.